

FEDERAL MARITIME COMMISSION

[Docket No. 26–07]

Down Quark Systems, LLC and SunnySide Digital, Inc., *Complainants* v. Zim American Integrated Shipping Services Co., LLC; Zim Integrated Shipping Services, Ltd.; and Port of Houston Authority of Harris County, Texas, *Respondents*; Notice of Filing of Complaint and Assignment

Notice is given that a complaint has been filed with the Federal Maritime Commission (the “Commission”) by Down Quark Systems, LLC and SunnySide Digital, Inc. (collectively, the “Complainants”) against Zim American Integrated Shipping Services Co., LLC; Zim Integrated Shipping Services, Ltd.; and Port of Houston Authority of Harris County, Texas (collectively, the “Respondents”). Complainants state that the Commission has subject-matter jurisdiction over this Complaint pursuant to the Shipping Act of 1984, as amended, 46 U.S.C. 40101 *et seq.*

Complainant Down Quark Systems, LLC is a limited liability company organized and existing under the laws of the state of Delaware with its principal place of business in Delaware.

Complainant SunnySide Digital, Inc. is a corporation organized and existing under the laws of the province of Ontario, Canada, with its principal place of business in Ontario, Canada.

Complainants identify respondent Zim Integrated Shipping Services, Ltd. as a global ocean carrier with its principal place of business located in Haifa, Israel, whose agent in the United States is respondent Zim American Integrated Shipping Services Co., an entity with its principal place of business located in Norfolk, Virginia. Complainants state that the Commission has personal jurisdiction over the “Zim Respondents” as, collectively, a “vessel operating ‘ocean common carrier’” as that term is defined by 46 U.S.C. 40102(7) and (18).

Complainants identify respondent Port of Houston Authority of Harris County, Texas (“Houston Bayport”) as a governmental entity organized and existing under the laws of the state of Texas with its executive offices in Houston, Texas. Complainants state that the Commission has personal jurisdiction over Houston Bayport as a marine terminal operator as that term is defined by 46 U.S.C. 40102(16) and 46 CFR 525.1(c)(13).

Complainants allege that Respondents violated, *inter alia*, 46 U.S.C. 41102(c); 41104(a)(2)(A), (a)(14)–(15)(B), (c); 41106(2); and 46 CFR 541.1–541.8 and 545.5. Complainants allege these

violations arose from the assessment of demurrage and “dwell” charges during periods of time in which Complainants’ ability to move its containers was constrained due to circumstances beyond its control, the charging of fees without issuance of proper invoices, the failure to publish separate demurrage rates for unique container types, the filing of two retaliatory lawsuits in United States District Court, and other acts or omissions by Respondents.

An answer to the complaint must be filed with the Commission within 25 days after the date of service.

The full text of the complaint can be found in the Commission’s electronic Reading Room at <https://www2.fmc.gov/readingroom/proceeding/26-07/>. This proceeding has been assigned to the Office of Administrative Law Judges. The initial decision of the presiding judge shall be issued by May 26, 2027, and the final decision of the Commission shall be issued by December 10, 2027.

(Authority: 46 U.S.C. 41301; 46 CFR 502.61(c))

Served: May 26, 2026.

David Eng,
Secretary.

[FR Doc. 2026–10670 Filed 5–28–26; 8:45 am]

BILLING CODE 6730–02–P

OFFICE OF GOVERNMENT ETHICS

Agency Information Collection Activities; Information Collection Renewal; Comment Request for Legal Expense Fund Information Collection

AGENCY: Office of Government Ethics (OGE).

ACTION: Notice of request for agency and public comments.

SUMMARY: After publication of this second-round notice, the U.S. Office of Government Ethics (OGE) plans to submit a proposed modified OGE Legal Expense Fund Information Collection for review and approval of a three-year extension under the Paperwork Reduction Act of 1995. The information collection relates to OGE’s Legal Expense Fund regulation at 5 CFR part 2635, subpart J.

DATES: Written comments by the public and agencies on this proposed extension are invited and must be received by June 29, 2026.

ADDRESSES: Submit written comments and recommendations for the proposed information collection within 30 days of publication of this notice to www.reginfo.gov/public/do/PRAMain. Find and comment on this particular

information collection by using the “Select Agency” drop-down menu under the “Currently Under Review” section to locate “Office of Government Ethics,” click the “Submit” button, and then click the “Comment” button. Alternatively, click the “Currently under Review—Open for Public Comments” link, locate the information on the page related to OMB Control Number 3209–0012, and click the “Comment” button to the right of such information.

FOR FURTHER INFORMATION CONTACT:

McEvan Baum at the U.S. Office of Government Ethics; telephone: 202–482–9287; TTY: 800–877–8339; Email: usage@oge.gov.

SUPPLEMENTARY INFORMATION:

Title: OGE Legal Expense Fund Information Collection.

Type of Information Collection: Extension with modifications of a currently approved collection.

Type of Review Request: Regular.

Respondents: Current executive branch employees (and/or their representatives) seeking to accept payments for legal expenses from a legal expense fund or the provision of pro bono legal services for matters arising in connection with the employee’s past or current official position, the employee’s prior position on a campaign of a candidate for President or Vice President, or the employee’s prior position on a Presidential Transition Team; legal expense fund trustees.

Estimated Average Annual Number of Responses: 133.

Total Estimated Time per Response: 5 minutes to 20 hours (see table below for detailed explanation).

Estimated Average Total Annual Burden: 109.2 hours.

OMB Control Number: 3209–0012.

Abstract: On May 25, 2023, OGE published a final rule establishing a framework to govern an executive branch employee’s acceptance of payments for legal expenses through a Legal Expense Fund (LEF) for matters arising in connection with the employee’s official position, the employee’s prior position on a campaign of a candidate for President or Vice President, or the employee’s prior position on a Presidential Transition Team. The requirements for establishing and maintaining an LEF are found in 5 CFR part 2635, subpart J (LEF regulation).

The LEF regulation requires that employees who wish to establish a legal expense fund do so through a trust with a single, named employee beneficiary and a trustee. It also requires an employee beneficiary to file quarterly